



Appeal Decision

Site visit made on 24 June 2026

by L J O'Brien BA (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 3 September 2026

Appeal Ref: 6007779

31A The Avenue, Poole, BH13 6LJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr A. Hensher and Ms Wei Fang Yang against the decision of Bournemouth Christchurch and Poole Council.
 - The application Ref is P/25/01216/FUL.
 - The development proposed is demolish existing dwelling and erect a replacement building containing 8 apartments with associated works.
-

Decision

1. The appeal is dismissed.

Procedural Matters

2. The appellant has submitted a number of amended plans at appeal stage which they believe overcome several of the Council's Reasons for Refusal. The appellant is of the view that these plans should be accepted and considered as part of the appeal before me. The Council has a different view and holds that the amended plans go beyond minor or inconsequential amendments and their acceptance would limit the ability for those matters to be properly considered through the normal application process, including consultation and assessment by the Council themselves.
3. The changes to the scheme as set out within the revised plans include amendments to the parking layout, amending the position of the footpath into the site and a reconfiguration of the bicycle and bin storage areas. Additionally, a Biodiversity Enhancement Plan (BEP) has been submitted.
4. Having reviewed both sets of plans, in my view, the revised plans do not involve fundamental changes to the scheme and are not so substantially different so as to deprive those who should have been consulted on the changed development the opportunity to comment on the revisions. Indeed, though the Council have expressed concern regarding their opportunity to comment on the revised plans, comments have been made within the submitted documentation and some changes are directly following the advice given previously. As such, I am satisfied that accepting the revised plans would not lead to any unlawful procedural unfairness and I have, consequently, determined the appeal on the basis of the revised plans.

Preliminary Matters and Main Issues

5. The National Planning Policy Framework (the Framework) was updated in August 2026, during the consideration of this appeal. The parties have been given the opportunity to consider whether the Framework 2026 has relevance to this appeal and to provide comments on this matter. Any comments received have been taken into account in my determination of this appeal and no parties have been prejudiced as a result. I have considered the new Framework in my determination of the appeal.
6. The appeal site lies between 400m and 5km of the Dorset Heathlands which are protected under European legislation for their wildlife importance. The site is also within close proximity to Poole Harbour which is a Special Protection Area (SPA), Site of Special Scientific Interest (SSSI) and Ramsar site. The determination of the appeal should be undertaken with regard to these European designations and the requirements of the Conservation of Habitats and Species Regulations 2017.
7. The Council's initial reasons for refusal included concerns regarding the lack of any mitigation in respect of the potential effect of the proposal on these protected sites. However, a legal agreement has since been submitted and the Council's statement indicates that they now consider these reasons for refusal to have fallen away. Though I will, nevertheless, return to consider this matter later, I, consequently, consider the main issues in this appeal to be:
 - the effect of the proposal on the character and appearance of the area, including any effect on the nearby Conservation Area; and
 - the effect of the proposal on protected trees; and
 - the effect of the proposal on biodiversity; and
 - the effect of the proposal on highway safety; and
 - whether or not the proposal would provide convenient and practical waste storage; and
 - the effect of the proposal on surface water drainage.

Reasons

8. The appeal site, 31A The Avenue, is a substantial plot on the eastern side of The Avenue. The site is currently occupied by a two-storey detached dwelling which the evidence before me indicates dates from the 1990s. In 2024 planning permission, subject to a number of conditions, was granted for the demolition of the existing house and the erection of a replacement dwelling and garage with associated landscape works¹.
9. The proposal before me is to demolish the existing building on site and to construct a replacement apartment building with 8 apartments. The proposed building would be three storeys in height with a basement level to provide

¹ Application Reference Number APP/23/01408/F

additional facilities. Five of the apartments would have three habitable rooms and three of the apartments would have four habitable rooms.

Character and appearance

10. The appeal property is a substantial two-storey detached property set within a spacious plot. The appeal site has a verdant character and appearance and the dwelling sits within this context; nestled within the existing mature trees and vegetation. The wider area is largely characterised by large dwellings, of varied designs, set within similarly verdant plots. Whilst architectural styles vary greatly in the area the prevailing character and appearance is that of large, single, dwelling houses within large plots.
11. The appeal site lies just outside of the Shoreline Character Area. The Shoreline Character Area Supplementary Planning Guidance, June 2004 (SPG) characterises the area's buildings as "typically, set in a matrix of trees". The appeal property reflects this description.
12. The site is adjacent to, but sits outside the boundary of, The Avenue Conservation Area (CA). The Avenue Conservation Area Appraisal (CAA) states that the CA is characterised by large houses in high-density planting and mature landscaping creating a sylvan residential character. The appeal site is within the setting of the CA and typifies these characteristics thus making a positive contribution to the significance of the CA as a heritage asset in this respect.
13. The proposed development would have a perceptibly larger footprint and additional storeys than the existing dwelling and would be set over three/four storeys; a basement, ground floor, first and second floor. The proposed building's overall scale and massing would be significant. This would be exacerbated by its flat-roofed form. The development would be characterised by extensive multi-storey elevations and a broad, block-like appearance, resulting in a building whose considerable mass would remain readily perceptible from both the public realm and neighbouring properties.
14. Part of the proposed building would be a storey lower and the recessed balconies and extensive glazing would introduce some architectural articulation and help to reduce the perceived magnitude of the built form. I also consider that the proposed palette of materials and modern architectural style would not be incongruous features. However, such design measures would not sufficiently mitigate the overall visual dominance of the proposal. The scale of the structure would appear visually prominent and would draw the eye within the street scene, giving rise to a building that would read as a bulky and dominant feature rather than one that assimilates comfortably into its surroundings.
15. The proposed building would have an unmistakably apartment-block like character and appearance. This would contrast markedly with the prevailing pattern of visible development in the immediate locality, which is characterised predominantly by individual detached dwellings, albeit some of a large scale, set within generous plots, with a more domestic scale and grain of development.
16. Furthermore, the existing property makes a positive contribution to the character of the area through its verdant setting. The dwelling is set well back from the road behind a mature hedged frontage and established vegetation, which together provide a strong green boundary treatment that reinforces the sylvan qualities of

the site. Consequently, views of the existing dwelling from public vantage points are typically filtered and softened by the surrounding greenery, with the building often only perceived in glimpsed views through vegetation. The visual prominence of the dwelling is therefore reduced and the green infrastructure is perceived as the defining characteristic of the frontage.

17. I note that the topography of the site is such that the existing backdrop of mature trees and vegetation would remain, although I will turn more fully to this matter later. Nevertheless, the proposed development would materially alter the established relationship between built form and landscape on the site. In particular, the proposed building would be positioned appreciably forward of the existing building line and the proposal would necessitate the removal of sections of boundary vegetation and the creation of an additional break in the established frontage treatment to accommodate a secondary access. Whilst reasonable separation distances to neighbouring properties would be maintained, these changes would collectively diminish the primacy and continuity of the site's green frontage.
18. The result would be a discernible shift in the balance between built development and landscaping, with the proposed building becoming a far more prominent feature within the site and wider street scene. Unlike the existing dwelling, which sits comfortably within its landscape setting, the proposed development would not nestle within the surrounding greenery but would assert a much greater visual presence by virtue of its scale, massing and siting. As a consequence, the proposed building would erode the verdant character of the site, leading to a built form which would dominate views towards the site.
19. When assessed in the round, the overall scale, massing, built form and appearance of the development would represent a substantial and conspicuous structure within the site that would have a significantly different presence to the existing pattern of development in the surrounding area. The combined effects of the partial erosion of the site's established green frontage and the introduction of a large-scale and visually dominant building would result in a harmful change to the character and appearance of the area. The proposed development would not pay due respect to the key characteristics of the CA as set out within the CAA and would thus diminish the contribution made by the appeal property to the setting, and thereby the significance of the CA.
20. The appellant suggests that other similar developments have been approved within the area and that some blocks of flats are present. However, each case must be determined on its own merits based on the specific circumstances at each site. These circumstances will rarely, if ever, be identical. The other flatted developments within the area sit within different contexts and are not in the immediate vicinity of the appeal site. They do not, therefore, form part of the direct character and appearance of the area surrounding the appeal site. The evidence before me, and my own observations, also indicate that the designs of the other blocks and the relationship between the soft landscaping and the built form is different to that which exists in the scheme before me. The building at No. 56 The Avenue, for example, is of a notably different design and includes the use of curves to soften its appearance. In any event, the existence of other examples is not sufficient reason to justify the grant of planning permission.

21. In considering the appeal I have taken note of the aims of the Framework 2026 and its advice that substantial weight should be given to the benefits of additional housing, including the introduction of additional units within residential curtilage, a matter to which I will return later. However, the Framework is also clear that such additional housing must be through sensitive redevelopment which is consistent with the overall street scene other than where it is appropriate to have larger buildings without causing harm to the character of a building and its surroundings. Whilst there would be no harm to the character of the existing building, as permission already exists for its demolition, I have found that the proposal would not represent a sensitive redevelopment and would cause harm to the character and appearance of the area. Due to its position within the setting of the CA and the positive contribution made to the significance of the asset by the current building and site, the appeal proposal would fail to preserve or enhance the character or appearance of the CA.
22. In finding harm to the significance of a designated heritage asset the Planning Practice Guidance (PPG) requires the extent of harm within that category to be clearly articulated. In this instance, given the limited extent and nature of the proposed development, the harm to the significance of the designated heritage asset would be at the lower end of less than substantial. Notwithstanding this, the identified harm is of considerable importance and weight.
23. The approach set out in the Framework is that where a proposal would cause harm to the significance of a designated heritage asset, as in this case, that harm should be weighed against the public benefits of the proposal.

Public benefits and heritage balance

24. It is not unreasonable to conclude that the proposal would lead to economic, social and environmental benefits. Amongst other things, these would stem from engaging local professionals, trades and suppliers and from the biodiversity and sustainability enhancements outlined by the appellant.
25. I accept that the scheme has a number of other potential benefits; of particular note would be the contribution made by seven additional dwellings in a sustainable and accessible location in an area where the Council cannot demonstrate a five year housing land supply. I attach substantial weight to this benefit.
26. Conversely, on the other side of the balance, I have found that the proposal would, by way of its position within the close setting of the CA, fail to preserve or enhance the character or appearance of the CA and cause harm to the significance of the heritage asset. The Framework indicates that substantial weight should also be given to the conservation of such heritage assets.
27. In my view, though I accept that the scheme would have a number of benefits, the substantial weight attributed to the provision of housing is moderated by the small scale of the proposal and in this instance I find that the combined public benefits of the scheme are not sufficient to outweigh the substantial degree of harm identified.
28. As such, the proposal would fail to accord with Policy PP27 of the Poole Local Plan, November 2018 (LP). Amongst other things, this policy requires a good standard of design for all developments which reflects or enhances local patterns of development and neighbouring buildings. The proposal would also be at odds with LP Policy PP28 which relates specifically to flatted development and states

that development will only be permitted where it ensures that the scale and massing of the building is in keeping with neighbouring buildings and the established pattern of development in the street, or part of the street, where the site is located. The proposal, in causing harm to the CA, would also conflict with LP Policy PP30 which expects development to preserve or enhance Poole's heritage assets and their settings.

29. The development would also fall short of the expectations of The Framework which broadly promotes high standards of design and states that developments should be visually attractive and sympathetic to the character of the area. The Framework further sets out that heritage assets are an irreplaceable resource, and should be conserved in a manner appropriate to their significance, so that they can be enjoyed for their contribution to the quality of life of existing and future generations.

Trees

30. As set out above, the appeal site is characterised by its position set amongst mature trees and vegetation. The trees on and around the site are an important landscape feature that make a significant contribution to the character and appearance of the area. A number of trees within, and surrounding, the appeal site are protected by a Tree Preservation Order².
31. The appeal before me is supported by an Arboricultural Appeal Statement (AAS) prepared by RNapc. This statement is appended with an Arboricultural Impact Assessment, an Arboricultural Method Statement, a Tree Protection Plan and engineering sketches showing the method of piling. The AAS is clear in its findings that no trees would be felled as part of the scheme before me and those being retained would be adequately protected. Whilst the Council agree with the findings of the AAS in principle, the lack of specific information in respect of elements of the detailed construction methodology has caused doubt to arise.
32. The appeal site is highly constrained by the surrounding protected trees and further complicated by the topography of the site. For this reason, and due to the size of the proposed building, there is limited space available outside the designated tree protection areas to accommodate the proposed development. The AAS sets out that construction access would be taken directly from The Avenue and contains some further information regarding the proposal. However, the AAS also lacks detail in a number of regards.
33. The proposed building is substantial in scale and will require the delivery and handling of significant quantities of materials. These materials would need to be transported to the rear of the site, where access is constrained with limited space along the sides of the site. Some of the information before me is detailed as being for information only, other precise information around the space required for the storage of materials and machinery, working areas, site offices, or contractor parking has not been provided. This lack of clarity raises concerns as to whether the construction can be undertaken without encroaching into protected areas and compromising retained trees. It has not been adequately demonstrated that the structure can be constructed whilst maintaining the protection measures outlined in the submitted Tree Protection Plan (TPP).

² The 1-11 (Odds), 11a & 15 Westminster Road, The Teak House, 31a,31b & 33-39 (Odds) The Avenue and 14-126 (Evens) Dalkeith Road Tree Preservation Order No 69/1998 confirmed on 8 March 1999.

34. The appellant states that a number of these considerations could be reviewed and agreed at a later date. In my view, given the size of the proposed building, the constrained nature of the site and the vital role the trees play in the character and appearance of the area, these matters are of considerable importance and go to the heart of whether or not planning permission should be granted.
35. I am not, on the basis of the evidence before me, convinced that it would be feasible to effectively construct the proposed scheme without causing harm to the protected trees. These circumstances are such that, in my view, it is not unreasonable to require a greater degree of certainty around these matters prior to the grant of planning permission. Indeed, it would not be appropriate to require such details through the use of planning conditions where doubt exists as to whether those conditions would be feasible practically.
36. I note the perceived difference in approach between the current scheme and the previously approved scheme. However, the proposal before me is notably different from that which was previously approved as the building includes a basement level, additional works to the frontage of the site and a larger building. As such, it is key that the scheme before me is assessed on the basis of its individual merits.
37. Given the lack of precise, detailed information in respect of these matters, I cannot be satisfied that the proposal would not cause harm to the protected trees or that it would be feasible to successfully secure the longevity of the trees through the use of planning conditions. Consequently, the proposal would conflict with LP Policy PP27 which sets out that development should respond to the natural features on the site and not result in the loss of trees that make a significant contribution to the character and local climate of the area.
38. The proposal would also fail to accord with the Framework which states that, in recognition of the benefits which trees can provide for biodiversity, climate change mitigation and adaptation, and the character and quality of the built environment, development proposals should make provision for the long-term maintenance of both existing and newly-planted trees which form part of the development.

Biodiversity

39. The scheme as originally submitted did not include details of biodiversity enhancements and was therefore deemed by the Council to be contrary to Policy PP33 of the LP which states that proposals for development should seek opportunities to enhance biodiversity through the restoration, improvement or creation of habitats and/or ecological networks. The policy also sets out that removal or damage of features of nature conservation/biodiversity interest will only be acceptable in exceptional circumstances and, where relevant, new development should seek to incorporate ecologically sensitive design features to secure a net gain in biodiversity as appropriate.
40. Nevertheless, the Council stated that had the development been acceptable in all other aspects then these details would have been sought and secured by condition.
41. A Biodiversity Enhancement Plan (BEP)³ has now been submitted with the appeal which sets out a number of biodiversity enhancements which would be provided as

³ By ABR Ecology Ltd dated 3 December 2025.

part of the scheme before me. The enhancements would include bat roosting features, bird nesting boxes, bee bricks and hedgehog friendly fencing. The Council consider that the BEP overcomes their previous concerns in this regard and I can see no reason to disagree with this assessment.

42. However, it is also noted that the Preliminary Roost Appraisal Report (PRA) relied on for the scheme before me was originally submitted with the previously mentioned planning application for which planning permission was granted in 2024. Though I accept that the previous permission, which includes the demolition of the existing dwelling, remains extant the scheme before me and the previous scheme differ in a number of ways and the PRA has now expired. In respect of the appeal scheme which is currently before me, I do not have up to date, accurate information upon which to determine whether the proposal would have any adverse effect on biodiversity.
43. Paragraph 99 of the Government Circular 06/2005 states “It is essential that the presence or otherwise of protected species, and the extent that they may be affected by the proposed development, is established before the planning permission is granted, otherwise all relevant material considerations may not have been addressed in making the decision”. As such, on the basis of the evidence before me I cannot be satisfied that the current scheme would not cause harm to a protected species. It would not be appropriate to rely upon an expired assessment which related to a previous scheme or to secure this matter by condition.
44. The proposal would, therefore, fail to comply with LP Policy PP33 insofar as it relates to the submission of a biodiversity appraisal where there are protected or important species and habitat features either within the site or in close proximity to it and the requirement to demonstrate how any features of nature conservation and biodiversity interests are to be protected and managed to prevent any adverse impact.
45. The proposal would also be at odds with the Framework which sets out that developments should minimise any adverse impacts on biodiversity and include features which support priority or threatened species such as bats.

Highway safety

46. The evidence before me indicates that the appeal site is located within Car Parking Zone D as set out within the Council’s adopted Parking Standards Supplementary Planning Document, January 2021 (PSPD). Table 9 of the PSPD sets out that, within Zone D, on the basis of the arrangement of habitable accommodation within the apartment building, 11 car parking spaces are required. Both iterations of the proposed scheme would meet this requirement.
47. Appendix A of the PSPD states that, for residential development, 5% of spaces (with a minimum of 1 space) should be able to adapt in order to meet the requirements of a disabled space should a disabled person require its use in the future. In this instance, 1 such space is required.
48. I share the concerns set out by the Council in respect of the plans as originally submitted. The original layout placed two parking bays in close proximity to the building’s entrance and would have potentially required vehicles to manoeuvre over the access footpath when entering or exiting the parking bays. This layout could have caused harmful conflict between vehicles and other road users.

49. Furthermore, the original iteration of the scheme did not specifically provide for a parking space which would have the potential to be adapted for disabled use if required.
50. However, this element of the proposal has been amended as part of the revised plans submitted at appeal stage. These changes were following feedback received by the Highway Authority in relation to the previous scheme, which commented that “I therefore suggest that bay no.11 be omitted and changed into a fully paved, keep clear area, suitable for wheelchair users, so that bay no.12 could be used for disabled parking as necessary”.
51. The revised plans have replaced the two bays near the building’s entrance with a single disabled parking bay thus overcoming the potential for the scheme to prejudice disabled users. The layout has also been reconfigured to ensure that the vehicle utilising the bay would not have to stray onto the footpath when manoeuvring. I am satisfied that the proposed parking bay could be effectively utilised without causing conflict between vehicles and pedestrians, cyclists or other road users.
52. For the reasons set out above, I consider that the proposal would meet the required parking standards and would not cause harm to highway safety. As such, the proposal, in this regard, would comply with LP Policy PP35 which states that development will be required to provide safe access to the highway and contribute positively to the retention and creation of safe, convenient pedestrian and cycling routes. The proposal would also accord with the guidance set out within the PSPD.

Waste storage

53. Policy PP27 (g) of the LP states that development should provide convenient and practical waste and recycling arrangements in accordance with the relevant standards. Though no specific policy-based standards have been provided, the Council's Waste and Recycling team have advised that for a development of 8 flats provision should be made for 2 x 1100L recycling bins, 1 x 1100L and 1 x 660L refuse bins and 1 x 140L food waste bin.
54. The revised plans demonstrate a bin store which would accommodate the required number of refuse containers. The revised plans also address previously raised issues by ensuring that the door to the bin store would be 1.5m wide and access would be via a ramp (incline 1:20) within 10m of the public highway. The access gate to the ramp still appears to fall slightly short of the required 1.5m width. However, given the overall width of the ramp, in my view, a gate of sufficient width could be accommodated and had I been minded to allow the appeal this could have been secured by a suitably worded planning condition. Additional recommendations regarding the overall specification of the ramp and a dropped kerb could also be secured through the use of a condition.
55. Consequently, I consider that the proposal would provide convenient and practical waste storage and would, therefore, comply with the requirements of LP Policy PP27 (g) insofar as they relate to waste and recycling arrangements.

Drainage

56. The majority of the appeal site is outside of a mapped flood risk area, however, a small area close to the road is mapped as having a surface water risk. No known drainage issues have been identified within the evidence before me.
57. The appeal has not been accompanied by any proposed drainage information. The appellant contends that these details could be secured by condition whilst the Council are of the view that, due to the constrained nature of the site, such a condition would not be appropriate.
58. The appeal site is currently developed and occupied by a dwelling with areas of patio and hardstanding. The aforementioned 2024 planning permission was granted for the demolition of the existing dwelling and the construction of a replacement dwelling. This permission was granted with attached conditions requiring all ground hard surfaces to be made of porous materials or for provision to be made to direct run-off water to appropriate porous surfaces and to ensure that no trenches or pipe runs for services or drains would be located within tree protection zones.
59. I accept that the appeal site is highly constrained. However, despite the differences between the appeal scheme and the scheme which was previously approved, I have not been provided with compelling evidence to demonstrate satisfactorily any reason, specifically in terms of drainage, why it would not be feasible to achieve an acceptable drainage scheme. I can see no reason why the current proposal is so markedly different from the previously approved scheme that it would not remain appropriate to secure such details via a suitably worded planning permission.
60. Due to the specificity of the evidence before me, the degree and importance of the concerns identified and the doubt over the feasibility of the proposal in this regard, I reached a different view in respect of the use of conditions to secure further detail in respect of the likely effects of the proposal on the protected trees. However, insofar as the potential implications of a drainage scheme are concerned, I am satisfied that the provision of an effective scheme could be secured through the use of appropriately worded planning conditions had I been minded to allow the appeal. As such, I consider that the proposal would not have an adverse effect on surface water drainage and would comply with LP Policy PP38 in this regard.

Other Matters

61. As previously outlined, I note that an extant planning permission was granted in July 2024 for the demolition of the existing house and garage and erection of a replacement dwelling and garage with associated landscaping works at the appeal site. This scheme is therefore a viable fallback position which, in my view, would be likely to be implemented if the appeal proposal before me were not approved. The approved development would occupy a similar footprint to that which is currently before me and would have a similar, slightly higher, roof line. However, despite these similarities a number of key differences exist between the schemes which would ensure that the approved development would sit comfortably within its context in ways which the appeal proposal would not.
62. The previously approved scheme has a proportionately larger single storey element, and the top storey would be significantly set-in from the storeys below.

The storeys would have a staggered appearance and the building, overall, would have the appearance of a single large dwelling. The use of curves within the design would assist in drawing the eye around the planes of the building to soften its appearance and the massing of the building would not be as overtly large. As such, the approved building would not appear visually dominant or incongruous.

63. Similarly to the appeal scheme, the approved dwelling would sit forward of the existing building line and would be closer to the road. However, the approved scheme would retain a single point of access and would thus not lead to the same degree of visibility as the scheme before me due to the intervening planting which would remain in situ.
64. I therefore consider that the previously approved scheme is substantially different to the proposed development and would not cause harm to the character and appearance of the area as would be the case with the appeal scheme.
65. As set out within the preliminary matters, the appeal site is within close proximity to Poole Harbour SPA, SSSI and Ramsar Site. The site is also within the vicinity (within 5 km and beyond 400m) of Dorset Heathlands which is identified as a European Protected Site for the special interest of its heathland habitats and associated plant and animal species. The Conservation of Habitats and Species Regulations 2017 (the Habitats Regulations) requires the decision maker to undertake an Appropriate Assessment (AA) where there are likely significant effects from the proposal, either alone or in combination with other plans or projects. This responsibility falls to me in the context of this appeal.
66. The proposed development would introduce seven additional residential units to the area. In my view, the additional residential units which would be provided in this instance would indeed be likely to lead to additional recreational visits and an intensification of the use of the protected sites. For this reason, the proposal would be likely, alone and in combination with other plans and projects in the area, to have a significant effect on the protected sites.
67. However, such developments can be made acceptable in planning terms through the use of suitable mitigation measures. In this case, mitigation measures have been identified and the appellant has provided an executed Unilateral Undertaking (UU) which would secure a contribution towards their implementation.
68. The Council has raised no objection in respect of the potential for the proposal to affect the sites and it would appear that it is a matter of agreement between the parties that, subject to appropriate mitigation, there would be no harm in this respect. I have had regard to the Council's approach and the UU in reaching my decision.

Planning Balance

69. There is no dispute between the parties that the Council cannot demonstrate a specific deliverable five-year housing land supply. The appellant advises that the Council can currently demonstrate a supply of 2.55 years and the Council do not appear to dispute this figure. The degree of shortfall is, therefore, significant. As such, the Framework advises that substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community.

70. The proposal would provide seven additional units of residential accommodation in a highly sustainable location which would assist in boosting the supply of housing in the area. I accept that any number of dwellings can contribute to the housing land supply within the area; in this instance, the increase in units would be modest yet meaningful. This would be a benefit of the scheme to which I attach substantial weight. I also acknowledge the economic benefits of engaging local professionals, trades and suppliers and the ongoing benefit of the occupiers of the proposed dwellings utilising local facilities. The scheme would also provide enhancements to biodiversity in a number of respects. The proposal would also include sustainability improvements which would be a benefit of the scheme.
71. Whilst I have found no harm with regards to the effect of the proposal on drainage, waste management or highway safety, these are neutral considerations and do not add weight in favour of allowing the appeal.
72. In contrast, I have found that the proposal would cause unacceptable harm to the character and appearance of the area. As a result of the location of the site within the setting of the CA I have also found that the proposal would fail to preserve or enhance the character or appearance of the CA. These considerations are such that the proposal would conflict with the adopted development plan in these regards. Furthermore, the Framework indicates that substantial weight should be given to the conservation of heritage assets and states that any harm to the significance of heritage assets (including from development within its setting) should have a clear and convincing justification. As set out within the previous section I did not find that the public benefits of the scheme outweighed the harm to the heritage asset I identified.
73. I have also concluded that the proposal would fail to ensure that important, protected trees would not be harmed by the proposal. I am also not satisfied, on the basis of the evidence before me, that the proposal would not cause harm to biodiversity. The proposal would further conflict with the LP in these respects and would also fall short of the expectations of the Framework.
74. In light of the concerns and uncertainties I have identified in my reasoning above I do not find that clear and convincing justification has been satisfactorily proven in respect of the harm caused to the significance of the heritage asset. In my judgement, having ascribed weight on both sides of the balance, the substantial weight to be attributed to the harm to the designated heritage asset, combined with the scale of the other key harms I have identified, is such that, in my view, the adverse impacts would substantially outweigh the benefits of the scheme.
75. If I had come to a different conclusion, it would have been necessary for me to undertake an AA and give further consideration to the likely effectiveness of mitigation measures associated with the protected sites. In so doing I would also have had regard to the provisions of the UU in order to be certain that the integrity of the protected site would not be adversely affected. However, as I am dismissing the appeal for other reasons, this has not been necessary.

Conclusion

76. The proposal would not accord with the development plan when it is considered as a whole. For the reasons given above I conclude that the appeal should be dismissed.

L J O'Brien

INSPECTOR